EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 16418/21
Nagihan KILIÇ
against Türkiye

The European Court of Human Rights (Second Section), sitting on 21 March 2024 as a Committee composed of:

Frédéric Krenc*, President*,
Diana Sârcu,
Davor Derenčinović*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 11 March 2021,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Ms Nagihan Kılıç, was born in 1989. She was represented by Mr D. Bekiroğlu, a lawyer practising in Kocaeli.

The applicant's complaints under Article 6 § 1 of the Convention concerning the right to a fair trial, including a right to a sufficient judicial review, equality of arms, adversarial proceedings and a right to a reasoned judgment and her separate complaint under Article 11 of the Convention were communicated to the Turkish Government ("the Government"), who submitted observations on the admissibility and merits. The observations were forwarded to the applicant, who was invited to submit her own observations. No reply was received to the Registry's letter.

By letter dated 21 August 2023, sent by registered post and via the Court's electronic communication system (e-Comms), the applicant's representative was notified that the period allowed for the submission of the applicant's observations had expired on 19 July 2023 and that no extension of time had been requested. The applicant's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The applicant's

representative received that letter on 4 September 2023 (registered letter) and 1 September 2023 (via e-Comms). However, no response has followed.

THE LAW

In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 11 April 2024.

Viktoriya Maradudina Acting Deputy Registrar	Frédéric Krenc President